

The New Legal Landscape

Family courts have reached the state they are in, at least partly, through the development of new and unusual features in the family court system. These developments were intended to improve the family courts, but their actual effect has often been remote from the intended one.

COURT AUXILIARIES

One special feature of family courts, particularly when sex abuse allegations are involved, is the special roster of auxiliary actors: law guardians, Child Protective Services (CPS) caseworkers, visitation supervisors, court-appointed mental health experts and evaluators, and sometimes others.

These auxiliaries enter family court litigation in many ways. In most states, child abuse allegations are now referred to child welfare agencies, known in some states as “presentment agencies,” which function much as prosecutors do in criminal cases. The child welfare agencies (or presentment agencies) in turn rely on social workers, evaluators, and psychologists. In addition, many states now require a family court to appoint a special representative for a child in a private custody suit, on the theory that since the parents are in conflict the child needs an advocate of their own to ensure that their rights are protected.

This process was clearly intended to aid the investigation and presentation of sex abuse charges, which by their nature tend to require the intervention of experts. But we have found that many (though not all) of the auxiliary family court personnel are actually among the leading contributors to the insanity of the courts.

For instance, one common way for auxiliary players to enter custody litigation is through a judge's order for a "home study" by the state's CPS agency. This sometimes occurs in conventional custody disputes but is much more common when charges of sexual abuse are raised. In such cases, all parties are likely to be evaluated, including the parent who made the allegation.

But protective mothers often present a special problem to the social workers who must evaluate them. Unlike indigent parents, who are accustomed to being at the mercy of state agencies for subsistence, many protective mothers are appreciably better educated and earn a better income than the caseworkers do. They are not prepared to be dictated to, and they do not meekly accept the state employees' assessment of them. This can often lead to antagonism between mothers and child protection caseworkers. In several cases we have studied, the formal charges pressed against mothers in family courts by child welfare agencies were essentially based on the allegedly "difficult" or "insulting" behavior of the mothers toward the case workers—not their capacity as parents. What is more, some CPS workers simply resist accusations of child sexual abuse. Researchers M.D. Everson and B.W. Boat (1989) have found that a certain proportion of CPS workers are more skeptical of children's claims of sexual abuse than is warranted by the actual rates of false reporting (which are low). Such skepticism adds a crucial irritant to the relationship between protective mothers and child welfare workers. The role of social service agencies will be discussed in more depth in Part II, Chapter 6 of this book.

"Law guardians" or "guardians ad litem" are not new to the courts, but they, like the social workers, have attained special prominence and

significance in abuse litigation. And since they function in family courts as the voice of the child, their acts of commission and omission have a profound effect on the progress of any abuse allegation. In one case, after a child disclosed to his mother that his father had molested him—and confirmed this to a pediatrician—the boy’s law guardian, without even meeting with the boy (supposedly his client), recommended in court that the boy and his younger brother be removed from their mother’s home, because otherwise “we’re going to be in and out of this courtroom the rest of our lives.” This was certainly not what his client wanted—but his position as law guardian apparently convinced the judge to remove two small children from the mother’s home without even considering the boy’s charges against his father. The role of “lawless” law guardians in the family courts will be examined in detail in Part II, Chapter 5 of this book.

The involvement of auxiliaries dramatically changes the landscape of custody/abuse litigation. When a mother makes an abuse allegation that is not supported by social workers, for instance, she finds herself fighting not only against one adversary (her ex-husband) but against an array of other actors who may then lend considerable official support (free of charge) to the mother’s adversary.

The influence of CPS social workers and lawyers on a family court goes far beyond mere advocacy. Family court judges, who work with these officials day in and day out, ordinarily defer to their recommendations. Indeed, they are under heavy pressure to do so. When New York City’s mayor made the unusual decision “not to reappoint a particular family court judge for a new term, some defense lawyers bitterly complained” to the *New York Law Journal* that the only reason was the judge’s “reputation for aggressively pushing [CPS] . . . to provide services to families and to conduct its work expeditiously”—rare among family court judges—and that denying him reappointment “only reinforced an already widespread tendency on the part of most Family Court judges to defer to the recommendations of ACS [New York City’s CPS agency].”

As one lawyer put it, “if you criticize ACS and don’t do what ACS wants, you are not going to get reappointed.” Another lawyer, who specialized in representing battered women, complained that the mayor’s decision made other family court judges “even more afraid to stand up to ACS.” (Unwittingly dotting the i’s of this attorney’s point, CPS lawyers told the *Law Journal* the judge deserved to lose his job because he had been “disrespectful” to them.) By contrast, a family court judge criticized by many defense lawyers for “being too inclined to accept the government’s position” was readily reappointed.¹

The support of the auxiliary actors in a family court case can mean more to an accused father than legal leverage. The father can derive financial benefit as well. For example, in a New York case litigated in the early 1990s, a law guardian was appointed by the court because of sex abuse allegations against the father. The legal role of a law guardian in such a case is to protect the child’s best interest. Yet after the family court judge awarded custody to the mother, limiting the father’s visits with the child because of sexually inappropriate behavior, it was the law guardian who appealed the decision to a higher court—thus effectively litigating for the father at the appellate level, although the father was found to have behaved inappropriately toward the law guardian’s own client! The added injury to the mother was that the law guardian’s appeal relieved the father of the heavy burden of appellate expenses—while the mother had to pay over \$25,000 in legal fees out of her own pocket. (Fortunately for the mother, the appellate court affirmed the family court’s ruling. However, the mother cannot recoup the enormous financial loss she suffered because of the law guardian’s action, while the father enjoyed a free appeal.)

In fact, in some cases we have studied, law guardians who were employed by state agencies and were sympathetic to one parent have used their own agencies’ money to purchase trial transcripts for use in an appeal (which can cost thousands of dollars) and then have provided a free copy to that parent—but not the other. Thus, the disfavored parent—the

mother in all the cases we know of—was put to a significant financial disadvantage.

“Visitation supervisors” represent another class of interlopers in modern-day custody proceedings in which an abuse issue has been raised. Their purpose is to monitor visits between a child and a parent, ostensibly for the protection of the child. But they are often called on in cases in which a family court judge suspects a mother of having “brain-washed” her children into believing they have been sexually abused. In such cases, visitation supervisors play their role in the family court structure by searching for any sort of evidence of “coaching,” improper “involvement” of the child in the lawsuit, or even “overidentification” of the mother with the child. Accordingly, they may permit only the strictest, most limited contact between the child and the mother, where every word the mother says is closely monitored to see if she is “planting ideas” in the child’s mind. In some cases, mothers are forbidden to hold their small children on their laps for fear they will whisper in the children’s ears.

This is clearly not what such supervisors were originally meant to do. Stern and Oehme (2002) opine in *Temple Law Review* that although “supervised visitation was originally established to provide a crucial service, parent-child access, and was never intended to be used as a backdoor parenting evaluation . . . using supervised visitation to ‘document behavior by each parent that either supports or discourages [access to the child]’ does just that” (p. 281). And, in fact, the authors point out that “courts . . . may be far too willing to allow unqualified visitation staff to make assessments [about visitation and custody]” (p. 285).

The evidentiary weight that family courts give to visitation reports, according to Stern and Oehme, notwithstanding the “lack of judicial and legislative standards governing their admissibility,” leads to a misguided reliance on visitation records in child custody proceedings that “can cause unintended consequences directly adverse to the best interests of the children . . .” (p. 278). And indeed, in some cases, visitation supervisors have presented evidence to family courts that the judges

relied on in terminating the visitation rights of the protective mother altogether.

Among the most important figures in of child abuse/custody litigation are mental health experts (and evaluators) who are hired by litigants or (more often) appointed by the court to evaluate the parenting skills of both parents. They are also called on to present psychological profiles of parents and children, and to analyze any claims of abuse that have been made. Since the mid-1970s, parents have been encouraged by family court judges to agree to the court's appointment of an impartial expert to make findings and recommendations in nearly all custody and visitation cases.² These experts wield extraordinary influence over judicial decision making. Unfortunately, the influence they can wield is often out of all proportion to the weight their methods and theories hold among their professional peers.

By 1985, some experts had found themselves under attack from angry family court litigants. Some of the litigants filed federal lawsuits against certain of the more controversial experts, alleging malpractice, negligence, invasion of privacy, and violation of constitutional rights. The suits were dismissed, and most health care professionals agreed with the dismissals. As William Curran, a regular legal editorialist for the *New England Journal of Medicine* at that time, wrote in 1985 about such lawsuits: "Ensuring complete immunity from suit is the only sensible method of discouraging such *angry retaliation*" (emphasis supplied).³ The need for such protection in acrimonious custody disputes is clear enough, but protecting the experts does nothing to protect litigants from the spurious or tendentious theories these experts sometimes bring to family courts.

One such theory is "Parental Alienation Syndrome" (PAS). New Jersey psychiatrist Richard A. Gardner coined this term in 1985⁴ to describe a special disorder that he claimed was unique to custody proceedings in which child sexual abuse allegations were raised. In *True and False Accusations of Child Sex Abuse* (1992), Gardner defines PAS as "a dis-

order in which children, programmed by the allegedly ‘loved’ parent, embark on a campaign of denigration of the allegedly ‘hated’ parent.” Gardner also claims that it is “most often the mothers who are involved in such programming, and the fathers are the victims of the campaigns of deprecation” (p. 193).

Gardner’s theories have received extensive criticism in published articles by other mental health professionals. They were officially rejected by the American Psychological Association’s Presidential Task Force on Violence and the Family in a 1996 report titled “Violence and the Family.” But PAS remains very popular with family courts.

Like Gardner, Dr. Arthur Green (mentioned in Chapter 1) claimed that in order to determine whether a child has been abused, the primary focus should be on scrutinizing the mother’s behavior.

Green advocated closely watching the mother-child interaction when a child reports abuse to a professional, seeing if the child “checks” with the mother before proceeding. He regarded this as an indication of a “brainwashed” child. But many of Green’s colleagues adamantly disagree: “In our experience, children who are anxious ... ‘check’ with their mothers for reassurance before proceeding. This does not invariably indicate brainwashing.”⁵ Nevertheless, Dr. Green remained a highly influential expert in custody and abuse litigation until his death in 1998. In fact, the influence of the theories of Gardner and Green is so pervasive that it is reflected, unconsciously, even by legal writers who are very skeptical of the claims on which those theories are based. As previously noted, *American Jurisprudence Proof of Facts* states—contradicting Gardner and Green—that coaching of sex abuse charges is rare in custody cases. But the same widely used treatise lists as “guidelines” for determining a sex abuse allegation’s reliability some controversial factors lifted right out of Gardner’s books. For instance, the treatise indicates that a mother’s strong reaction to the child’s disclosure of sex abuse may be indicative of a false allegation. It also mentions the importance of determining from the outset if the allegations arose during

a custody battle. These are, in fact, among the criteria recommended by Gardner. But such an approach, according to Corwin and colleagues (1987), can be grossly misleading for the simple reason that sex abuse is more likely to be disclosed by the child when the abuser is already out of the house (leaving the child feeling safe enough to talk) than when a family is intact. And, of course, a protective parent's strong reaction may be perfectly appropriate if the charge is genuine.

The anti-mother bias that thrives in the family courts has accommodated even more extreme psychological theories. For instance, psychologist Ira Turkat has named "Malicious Mother Syndrome" (MMS) to identify "mothers [who] not only try to alienate their children from their fathers, but are committed to a broadly based campaign to hurt the father directly" (1997, pp. 1718). Like PAS, this theory has the particularly insidious feature of apparently substituting for a factual inquiry into an abuse allegation, since it classifies such accusations as "true" or "false" based on the behavior and attitudes of the mother who believes them. Responding to Turkat in *Judges' Journal*, Smith and Coukos (1997) stated: "Courts should be vigilant in evaluating any psychological expert testimony that claims to be able to discern false from true allegations, or that can be used to explain away or cover up abuse," concluding that the "most well-intentioned judges may be completely unaware of how they view protective parents until they are presented with empirical information about ... child abuse" (pp. 41, 45). This advice is frequently unheeded by family court judges who find it simpler to describe an angry mother than to assess a factually complicated or murky charge of sex abuse. The causes and effects of tendentious mental health theories in family courts will be examined in Part II, Chapter 7 of this book.

PROCEDURAL PECULIARITIES

Family courts are characterized by procedural peculiarities that often work to the detriment of protective mothers.

First, the proceedings are confidential. This protects family court judges from the restraining influence of the public eye. In some states family courts are closed by statute; in other states, at least in theory, an evidentiary hearing must take place to determine if the case should be closed. But in practice judges can easily seal court records and close hearings to the public. This gives family courts unusual leeway in threatening or punishing litigants without anyone outside the court being none the wiser.

“Confidentiality” may be extended even further. Mothers may be ordered not to talk to the public, or to friends, family, or support groups, about what goes on inside the court. If they violate such orders, they may lose custody or visitation rights. Pennington testified before the House Judiciary Committee (1992) that such “gag orders” have become “commonplace” in family court cases. Like the sealing of court records, she said, these orders “are used to keep the public from being informed about the inequities rampant in the system.”⁶

Second, family courts are not quite taken seriously by practicing attorneys. A disturbing number of family law practitioners refer to them as “kangaroo courts.” They deal with “family problems” (often the problems of poor families) and lack the prestige of other civil or criminal tribunals. The physical appearance of family courts, especially in major cities, is telling. These courts are often set in small, poorly lit, windowless rooms. A New York nonprofit organization called the Fund for Modern Courts measures “improvements” in family courts by such barometers as rodent control and the availability of bathroom toilet paper. (When the Fund for Modern Courts did comment about the behavior of one of the judges—who would resign a few years later in the face of a state senator’s complaint about his conduct—its published report praised the

judge as one who could be “positive, strong and strict in decisions when the case requires it.”)⁷ To date, no governmental body with oversight capacity has performed a serious investigation into the operations of family courts, notwithstanding the rising number of complaints over the past two decades.

UNEQUAL PROTECTION

One especially unnerving aspect of today’s divorce and abuse litigation is that, in some cases, a family court judge “consolidates” a private custody action with a petition from a state CPS agency charging one of the parents with abuse or neglect. When the charge is against a protective parent—who is often accused of “psychological neglect” for making an abuse report—this has the effect of forcing the mother to fight not only her ex-husband but the state itself in her effort to retain custody of her children.

Since most judges tend to follow the recommendations of state CPS agencies, who form close relationships with judges in their day-to-day handling of neglect and abuse cases (and have political influence over judicial appointments and reappointments as well—see the examples previously discussed in this chapter), a parent whose position is opposed by a CPS agency faces extraordinary obstacles. Even worse, this procedure can result in the state literally underwriting one party’s legal fees, expert witness bills, and court transcript costs in a private custody action against the other parent. It is difficult to imagine such an arrangement in any other sort of litigation between two parties.

For example, during one New York case, after a change of custody action was combined with an “emotional neglect” proceeding against the protective mother, the father’s attorney admitted in court that he could “sit back and do nothing” while the state agency attorneys vigorously represented his client’s position, even providing all the witnesses

to testify for him at state expense. When the mother appealed the family court's custody ruling, she was forced to pay thousands of dollars for court transcripts—but the state agency provided copies to the father. This father, incidentally, was not poor; he was a practicing physician. Yet he was spared most of the costs of a long custody trial, which awarded him sole custody of his daughter despite the child's charges that he had molested her (which were supported by an eyewitness and by a leading New York expert on child sex abuse, Dr. Anne Meltzer).

FAILURE OF THE APPEALS PROCESS

In theory, appellate courts exist to correct errors made at the trial level, in family courts as in other courts. However, the cases we have reviewed show that appellate review is rarely of much help to protective parents. Appeals from family court rulings, particularly when an abuse or neglect finding is at issue, rarely result in reversal of the lower court's rulings; in fact, the decisions usually uphold the family courts without even giving detailed reasons.

The lack of serious appellate interest in family court rulings is one reason many of these rulings are not appealed to begin with. But there are other reasons as well. First, due process violations may result from an interim order rather than a final one. For example, when a child is temporarily removed from a protective parent's home on an "emergency" basis, or is temporarily transferred into the custody of the allegedly abusive parent pending the outcome of a custody proceeding, the order involved generally cannot be appealed (in most jurisdictions) until after the case is resolved. But by this time, long after the change in the child's residence, an appeal is often useless.

Second, protective parents are often pressured to make deals with CPS attorneys that preempt appellate review. In one typical case, the CPS attorney, having helped the father win custody of his daughter

from the mother, pressed the mother to accept a “global settlement” with the agency that was prosecuting her for “brainwashing” her child to believe she had been sexually abused. Settlements of this kind require a mother to agree to accept certain penalties, such as a limitation on visitation—and what is more, they are not appealable. In addition, CPS may still renew its case against such a mother if it is not satisfied with the mother’s compliance with the imposed conditions. The mother in this case refused to give in, but not all mothers in her position can resist the pressure. According to a 1989 report by Senator Mary B. Goodhue, chairperson of the New York State Senate Committee on Child Care, at least one-third of mothers offered “deals” by state agencies under which they would accept some penalties, implicitly admitting some degree of guilt, and would waive their right to appeal (arrangements formally known as “adjournments in contemplation of dismissal”), have accepted the offers.⁸

That so many cases never receive appellate review means, in practice, that family courts remain impervious to scrutiny by higher courts, which could be making good case law to keep family courts in check.